

**BEFORE THE HON'BLE NATIONAL GREEN TRIBUNAL,  
PRINCIPAL BENCH, NEW DELHI**  
Original Application No. 519/2016

**In the matter of:**

Hardeep Singh & Others

...Applicant

Versus

SDMC & Ors.

...Respondents

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(Dr. KS Jayachandran)  
Special Secretary(Environment), GNCTD

New Delhi:  
Dated:- 12.10.2022.

**BEFORE THE HON'BLE NATIONAL GREEN TRIBUNAL,  
PRINCIPAL BENCH, NEW DELHI**

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**STATUS REPORT ON BEHALF OF THE GOVERNMENT OF  
NCT OF DELHI IN COMPLIANCE TO THIS HON'BLE  
NATIONAL GREEN TRIBUNAL ORDER DATED 14.07.2022.**

**Most Respectfully Showeth:**

1. That this Hon'ble Tribunal after detailed discussion passed following direction vide order dated 14.07.2022:

*....We consider it appropriate to direct the Chief Secretary, Delhi to hold a joint meeting with the concerned departments, including Municipal Corporation Delhi, Commissioner of Police, Environment Department, Education Department, Transport Department, DSLSA, NDMC, Delhi Cantonment Board, DPCC, CPCB within one month for brainstorming on the report and issue appropriate statutory/administrative order in the light of the Report, identifying accountable authority/authorities for the steps to be taken. The Chief Secretary, Delhi may file an action taken report within two months....*

## 2. Action Taken by GNCTD:-

- (a) That in compliance to the Direction of this Hon'ble Tribunal order dated 14.07.2022, a joint meeting was held on 18.08.2022 under the Chairmanship of the Chief Secretary, Delhi with all stakeholder departments and Members of Joint Committee under DCP-PCR and SDM (Haus Khas), GNCTD. Minutes of the meeting held on 18.08.2022 is annexed herewith as Annexure I.
- (b) That the order is being issued by the Chief Secretary, Delhi, allocating the work/ action required to be taken by designated authority under Noise Rules, 2000. The draft of which is enclosed herewith as Annexure II.
- (c) That, Environment Department/ DPCC in collaboration with Delhi Judicial Academy and Delhi State Legal Services Authority organised a conference on educating the ill impact of noise on human health on 10.09.2022.
- (d) That Action Taken Report upto 18.09.2022 as received from the committee of DCP-PCR is annexed herewith as Annexure III. The Committee is taking joint meetings with all stakeholders and monitoring the compliance of Noise Rules, 2000. Minutes of the meetings of the Committee dated 22.07.2022 and 30.08.2022 are annexed herewith as Annexure IV (Colly).
- (e) That to properly co-ordinate the issue on higher level, in place of SDM(Haus Khas), the Dy. Commissioner (Head Quarter) has been nominated as Nodal Officer of Noise Pollution Control Committee.
3. That following notifications were issued by GNCTD from time to time to curb the noise pollution:
- (a) The GNCTD had vide notification dated 10<sup>th</sup> December 2001 and 3<sup>rd</sup> April 2008 designated all Deputy Commissioner (Revenue), all SDMs, Asst Commissioner of Police Control Room, all Sub Divisional Police Officer including Railways & Airports, Chairman

and Member Secretary of DPCC and ACP (Traffic) under the provisions of Noise Pollution (Regulation & Control) Rules, 2000.

(b) Environment Department, GNCTD notified following areas as Silence Areas/Zones vide notification dated 3<sup>rd</sup> April, 2008.

- An area of 100 meters around all Educational Institutions having more than one thousand students.
- An area of 100 meters around all Courts.
- An area of 100 meters around all Government Office Complexes.
- An area of 100 meters around all 100 bedded and above hospitals.

(c) GNCTD issued Noise limiter Notification vide dated 21<sup>st</sup> November 2019 under the Noise Rules, 2000, with following provisions:

- To ensure that no audio system or public address system shall be let out/installed without being fitted with Sound limiter in any Government or non-Government function.
- Further no Sound System to be sold/ purchased / supplied / used by any manufacturer / dealer / shopkeeper/ any agency who lets out the Public Address System etc./ individual without having sound limiter in it.

(d) DPCC issued direction on 25<sup>th</sup> June, 2021 to designated authorities in compliance of the direction by CPCB, regarding Implementation of Compensation Regime for violation of Noise Rules. (Use of loud speakers/public address system, DG sets, construction equipments, fire crackers)

4. That further actions in compliance to the Directions of this Hon'ble National Green Tribunal are as follows:

**1. Implementation of Action Plan for Noise Pollution Control of Delhi Government as approved by Central Pollution Control Board:**

Joint Committee under DCP-PCR and SDM (Haus Khas), constituted vide directions of this Tribunal, monitors the implementation of Noise Pollution Control Action Plan on following major points with regular fortnightly meetings with the stakeholder departments:

- a. Identification of Hotspots
- b. Development of Real time Monitoring Network in different land use area
- c. Procurement of handheld Noise Meters for monitoring purpose
- d. Strengthening of Noise Monitoring
- e. Strict implementation on Noise Rules and Noise limiter Notification
- f. Mass Awareness on Noise pollution Control
- g. Noise barriers to be installed on all major construction sites
- h. ITMS to be implemented at Traffic bottle necks. Strict enforcement of No honking zone/Silence Zone
- i. Noise to be controlled at source in Industrial areas (Noise mufflers, Silencers, noise curtains and Noise barriers)
- j. 24 x 7 helpline and Web portal for Redressal of grievances
- k. Strict implementation of Diesel Generator (DG) Notification

The Monitoring Committee has devised specific proformas for seeking information from civic bodies. The minutes of the meeting held on 28.09.2022 is enclosed herewith as **Annexure-V**.

## **2. Development of Legal framework for effective control of noise pollution:-**

To overcome the practical difficulties faced by the enforcement agencies involved in the effective implementation of noise pollution rules & regulations and to develop a robust & effective protocol for implementation of a legal framework of noise pollution, following initiatives were taken by Government of NCT of Delhi:

- a. Empowerment of Local Bodies**

The Draft notification under Environment (Protection) Act, 1986, empowering Asst. Commissioner of Local bodies under provisions of the Noise Pollution (Regulation and Control) Rules, 2000 is being issued.

**b. Permission for Loudspeakers**

Authorised Officer of Delhi Police as per GNCTD notification dated 10<sup>th</sup> December, 2001 and 3<sup>rd</sup> April, 2008 have been directed to strictly implement restrictions on the use of loud speakers/public address systems. While granting permissions for the use of loud speakers/public address system, condition for compliance to the sound limiter notification is given.

**c. Delegation of Authority**

- For delegation of authorities to all SHOs in Delhi, DPCC, vide its letter dated 30.03.2022 followed by reminder on 07.07.2022 had requested MOEF&CC, Government of India to suitably amend the Notification No. S.O.394 (E) dated 16.04.1987 and all SHOs of Delhi Police may be inserted in the said Notification as an authorized officer under Section 19 of the Environment (Protection) Act, 1986, for acting on the violation of the Noise Rules, 2000. MoEF&CC, GOI on 10<sup>th</sup> August, 2022 has asked the comments of CPCB on the proposal. DPCC has requested CPCB for their early response to MOEF&CC. The letters exchanged between DPCC and MOEF&CC as well as CPCB are enclosed herewith as **Annexure-VI (Colly)**.
- In addition to Delegation of Powers to SHOs, GNCTD has also requested to MOEF&CC for delegation of authority to Tehsildars (Revenue Department) & Inspectors of Delhi Police, as authorized officer under Section 19 of the Environment (Protection) Act, 1986, for acting on the violation of the Noise Rules, 2000. The letter issued to MOEF&CC is enclosed herewith as **Annexure-VII**.

- d. That to further sensitize the designated authorities notified under Noise Rules, a letter was issued to Commissioner of Police and Divisional Commissioner, Delhi on 21.09.2022 to direct there subordinate authorities to take more stringent action on ground. The letter issued on 21.09.2022 is enclosed herewith as **Annexure-VIII**. Designated authorities have been directed to submit monthly action taken report of inspections conducted, compensation imposed and compensation collected to DPCC. Authorized officers have also been directed to increase the enforcement actions.

### 3. Data Analysis and Identification of Hotspots

- DPCC has installed 31 nos. Real Time Noise Monitoring Station (26 nos. DPCC and 05 nos. CPCB). DPCC has procured 05 nos. Hand-held Noise Meter Type-A in year 2019 for strengthening of noise monitoring.
- Assessment of noise data of 31 locations were done, for the year of 2021(Jan. to Dec.). Based on one year Real Time Noise Monitoring data, 23 locations have been identified based on land use area. The location exceeding 10 dB(A) in Day and Night Time from noise standard as notified in Noise Rules 2000 is considered as **"Noise Pollution Hotspots"**. The Noise Pollution Hotspots list is annexed herewith as **Annexure-IX**. DPCC shares the data of hotspots to local bodies & Traffic Police for taking suitable actions to control noise pollution at source. Traffic Police is regularly taking action around 23 hotspots identified by DPCC. Although same is available on the website of the DPCC.
- A committee is being constituted to assess the need for further Strengthening of Real Time Noise Monitoring Network in different land uses based and area of that particular district. Regular Noise Monitoring is being conducted where D.G. Set has been installed in various Industrial Establishment like

Banquet Hall, Hotels, Hospitals, Malls, Silence Zone, Commercial places, Institutions etc.

- A process of development of Mobile App has been initiated by DPCC and study by European countries is being explored, although as on day GREEN DELHI APP (GNCTD) and SAMEER App (CPCB) are functional.
- Local Bodies and Police Department are already doing noise monitoring as per "Standard Operating Procedure" provided by DPCC and as per notification related to the Noise Pollution (Regulation and Control) Rules. 2000. The local bodies have been directed to procure more sound level meters. Total of 272 SLMs have been procured by Delhi Police, MCD, DCB and DPCC.

#### **4. Controlling Traffic Noise and creating public awareness**

- Stakeholder departments have been directed to initiate actions against modified silencers, pressure horns, action against modified exhausts, violations of silence zones etc. All the stake holder departments have been directed to undertake media campaigns for mass awareness regarding noise pollution.
- Transport Department has prepared a media campaign for the awareness of "No Honking Day" for 2<sup>nd</sup> day of every week. Enforcement Branch of the Transport department has been sensitized for necessary action during this event. Delhi Police has been requested for co-operation in the event.
- Direction has been conveyed to the community Taxis like Ola & Uber, to include the points like unnecessary honking, using pressure horns in their feedback forms.
- The Enforcement Branch of Transport department keeps more emphasis for challaning the vehicles, which are unnecessary honking, pressure horns and modified exhausts for smooth flow of traffic. The enforcement teams have been deployed for maintaining bus lane discipline.

- A proposal for control of illegal sale of modified silencers & pressure horns in markets, in coordination with trade & taxes departments and is preparing a draft for circulation to all areas SDMs in Delhi for effective implementation on ground.
- MCD regularly undertakes program for removal of encroachment on footpaths like Vendors & Hawkers etc. Illegal parking on roads is also being reviewed by the MCD with the help of Delhi Police and Traffic Police.
- To sensitize about Noise Pollution, IEC drive is being conducted in 358 Nos of MCD Primary Schools. People are sensitized not to honk during traffic lights/during slow movement of traffic such as at traffic locations of Khajuri Khas, Shahdara Bus Stand, Seelampur red light, Preet Vihar red light, Anand Vihar Bus Stand and Shastri Park red light etc.
- **The analysis of grievances on different platforms i.e. Web Portal, Noise Helpline and ERSS-112 up to 18.09.2022 are as under:**
  - On an annual analysis, 983 grievances were received on web portal upto 18.09.2022. Out of 983, 05 legal actions taken, 147 untraced, 752 filed and 79 were found to be repeated.
  - On exclusive helpline 1,224 calls were received up to 18.09.2022 and 11 legal actions, 159 untraced, 276 filed and 78 calls were found to be repeated.
  - On ERSS-112, total 19,673 calls were received, 190 legal actions, 3,891 untraced and 12,906 filed and 2,686 found to be repeated.
- **Analysis of SAMEER & Green Delhi App up to 18.09.2022 are as under:**
  - On Sameer App, a total 303 grievances were received in which 298 were resolved and 05 are pending.

- On Green Delhi App, a total 730 grievances were received in which 726 were resolved and 06 are pending with Delhi Police up to 18.09.2022.

#### **5. Noise Control at Construction Sites**

- DPCC has formulated detailed interim guideline for construction sites in coordination with the PWD department, Traffic Police and other stakeholder departments.
- ULBs and DPCC are conducting regular field inspections through field staff, for proper sensitization and enforcement of rules.
- ULBs and DPCC are also launching campaigns for checking of construction sites with the help of sound level meters. Total of 272 SLMs have been procured by Delhi Police, MCD, DCB and DPCC.
- Transport Dept. is also taking actions against the tractors used for commercial purposes.
- All SDMs have been declared responsible for noise pollution/violation in their jurisdiction and maintaining of Noise levels in any area/zone as specified in the Schedule. The Noise of the D.G. Sets/cooling towers/Air Conditioners/Compressors installed in Commercial areas, sound emitting construction equipment (including marble & tile cutting machines) and bursting of firecrackers is being strictly implemented by all SDMs.

#### **6. Noise Control at Religious Sites**

- Delhi police alone has conducted 1726 meetings so far with office bearers of religious institutions for mass awareness on noise pollution control
- Local bodies are also conducting regular meetings.

**7. Awareness Measures-** All the stake holder departments are undertaking media campaigns.

**Dept. of Environment, GNCTD**

- About 2000 Eco clubs schools/colleges of Delhi have been provided with Annual Calendar for undertaking environment related activities and awareness programs in their school/college premises. Pointers covering all aspect of Noise Pollution have been sent to all eco clubs schools/colleges for taking precautionary actions to minimize noise Pollution.
- IEC materials on Noise pollution have been sent to eco club schools/college with details of Green Delhi app, ERSS, ngms.delhi.gov.in and dedicated help line number. Two lakh pamphlets distributed on 05.09.2022 among 11 DM office, 12 Dy Director Education offices, and 15 DCP offices for further mass awareness.
- Advertisements were issued in leading 14 newspapers on 12.08.2022. Jingles and videos related to Noise Pollution are being created by the department.
- Month of September was specially marked for awareness on noise pollution. Eco clubs of schools/colleges have undergone different competition like painting, slogan writing, poster making, Nukkad Natak, lecture etc. Department has convened 2 webinars on noise pollution on 27.04.2022 & 28.09.2022 under Dr. Nasim Akhtar, Senior Principal Scientist, CRRI in which more than 50 eco club school/college participated.

**Directorate of Education, GNCTD**

- Awareness was conducted in schools on Noise Pollution and activities conducted such as Poster Competition, Quiz, Essay Writing, Painting, Role Play etc were conducted. IEC material was also distributed among school students.

**Local Bodies:**

- To sensitize students about Noise Pollution, IEC drive is being conducted in 358 Nos of MCD Primary Schools.

The present status report is to be taken on record of this Hon'ble Tribunal.



(Dr. K.S. Jayachandran)  
Special Secretary(Environment)



**STN**  
SILENCetheNOISE.in

**DEPARTMENT OF ENVIRONMENT**

Govt. of NCT of Delhi  
6h Level, C-wing, Delhi Secretariat,  
I.P. Estate, New Delhi-110002  
Telephone: 23392306

(12)  
Annexure-I

F.No.10(30)/Env/2016/Vol-I/4887-98

Dated: 13/09/22

**Sub: Minutes of the Meeting convened on 18.08.2022 under the Chairmanship of Chief Secretary, Delhi regarding implementation of Noise Pollution (Regulation and Control) Rules, 2000 in compliance to the Order dated 14.07.2022 passed by the Hon'ble National Green Tribunal in OA 519/2016 titled as "Hardeep Singh & Ors versus SDMC and ors".**

1. The meeting was convened on 18.08.2022 at 04:15 PM under the Chairmanship of Chief Secretary, Delhi regarding implementation of Noise Pollution (Regulation and Control) Rules, 2000 read along with the order dated 14.07.2022 passed by the Hon'ble Green Tribunal, Hon'ble Supreme Court Directions passed in WP(C) 72/1998 in the year of 2005 and Justice(retired) S.P. Garg Committee Report submitted to Hon'ble Green Tribunal in OA 519/2016.
2. List of Participants is annexed as **Annexure-1**.
3. Special Secretary (Environment) gave a brief presentation highlighting the Rules, Notifications issued by GNCTD so far, factors responsible for Noise Pollution and their control in Delhi. As on day, DPCC is having 31 Continuous Noise Monitoring Stations and CPCB is having 10 Continuous Noise Monitoring Stations in Delhi. DPCC analyse the data on regular basis and shares with Stakeholder Departments (ULBs/DP/Traffic/Transport Dept.).
4. The GNCTD also prepared Action Plan for Noise Pollution Control which was approved by CPCB on 21.07.2020. This action plan was circulated to all stakeholder departments for implementation.

This action plan includes:

- Identification of Noise Hotspots
- Development of Real time Monitoring Network in different land use area
- Procurement of hand-held Noise Meters for monitoring purpose for complaint etc
- Strengthening of Noise Monitoring
- Strict implementation on Noise Rules and Noise limiter Notification
- Mass Awareness on Noise Pollution Control
- Noise barriers to be installed on all major construction sites
- ITMS to be implemented at Traffic bottle necks
- Strict enforcement of No honking zone/Silence Zone

- Noise to be controlled at source in Industrial areas (Noise mufflers, Silencers, noise curtains and Noise barriers)
- 24 x 7 helpline and Web portal for Redressal of grievances and strict implementation of Diesel Generator (DG) Notification

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Joint Committee under DCP-PCR and nominated SDM monitors the implementation of Noise Pollution Control Action Plan.

5. The GNCTD has designated all Deputy Commissioner (Revenue), all SDMs, Asst Commissioner of Police Control Room, all Sub Divisional Police Officer including Railways & Airports, Chairman and Member Secretary of DPCC and ACP (Traffic) under the provisions of Noise Pollution (Regulation & Control) Rules, 2000.
6. Environment Department, GNCTD notified following areas as Silence Areas/Zones in 2008.
  - An area of 100 meters around all Educational Institutions having more than one thousand students.
  - An area of 100 meters around all Courts.
  - An area of 100 meters around all Government Office Complexes.
  - An area of 100 meters around all 100 bedded and above hospitals.
7. GNCTD issued Noise limiter Notification on 21<sup>st</sup> November 2019 under sub-rule (3) of rule 3 and sub-rule (3) of rule 5 read with clause (c) of rule 2 of the Noise Pollution (Regulation and Control) Rules, 2000.
  - To ensure that no audio system or public address system shall be let out/installed without being fitted with Sound limiter in any Government or non-Government function.
  - Further no Sound System to be sold/ purchased / supplied / used by any manufacturer / dealer / shopkeeper/ any agency who lets out the Public Address System etc./ individual without having sound limiter in it.
8. Direction was also issued on 25th June, 2021 to designated authorities in compliance of the direction by CPCB – Regarding Implementation of Compensation Regime for violation of Noise Rules. (Use of loud speakers/public address system, DG sets, construction equipments, fire crackers)
9. After detailed discussion and deliberations, following decisions were taken:
  - i. DPCC may develop an application to make Noise monitoring data more accessible to the public. DPCC may prepare a draft on actions to be taken by field staff and explore the possibility to strengthen the existing noise monitoring network in Delhi. Measures like noise tracking which are so adopted by the European countries may be studied and a report be prepared. The draft guidelines for construction

works on which DPCC is working on should be expedited and finalized.

**Action: DPCC**

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- ii. The Chief Secretary directed Delhi Police and Transport Department that 2<sup>nd</sup> day of every week may be declared as no honking day after due publicity of the same. Drive/campaign against honking be launched as done previously during the months of February- March 2022.

**Action: Delhi Police, Transport Department, Traffic Police**

- iii. Transport Dept. was directed to conduct media campaigns for control of vehicular noise pollution in Delhi. In the feedback form of community taxis like Ola & Uber, points like unnecessary honking, using pressure horns should be added.

**Action: Transport Department**

- iv. "Intelligent Traffic Management System" be implemented at traffic bottlenecks, to ensure free flow of traffic, to reduce idling vehicular noise, strict enforcement of 'no-honking' zones/silence zones.

**Action: Transport Department**

- v. Prosecution should be increased against using pressure horns and actions to be taken against modified exhausts.

**Action: Transport Department, Traffic Police**

- vi. As informed by Transport Commissioner, encroachment on footpaths and illegal parking by auto-rickshaws causes congestion and consequently honking. Land owning agencies must remove encroachment on footpaths/drive way as well as illegal parking on metalled road for smooth flow of traffic. Appropriate actions are required from ULBs/Delhi Police.

**Action: ULBs, Delhi Police**

- vii. Concerted IEC drive on behavioural aspects as well as ill effects of Noise Pollution on FM Radio must be carried out with the help of DIP. Services of Brand Ambassador (for example: Commonwealth Games Medal Winners) may be taken.

**Action: Department of Environment, Delhi Police, ULBs, Transport Department**

- viii. Department of Environment, GNCTD may also explore development of an online module where participants can download certificates of participation and become awareness warriors. The module can be in

the form of digital community like mygov.in where participants can upload videos etc.

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**Action: Department of Environment, GNCTD**

- ix. The ill effects of Noise can reach citizens if renowned ENT doctors of reputed Hospitals can talk over 10 to 15 second clippings for wide dissemination amongst public. Use of Social Media to sensitize and motivate people to follow noise norms.

**Action: Department of Environment, GNCTD, Delhi Police**

- x. In addition to Delegation of Powers to SHOs, Tehsildars (Revenue Department) & Inspectors of Delhi Police may also be empowered to take action for violations of the Noise Rules.

**Action: Department of Environment, GNCTD**

- xi. The overall legal action percentage in resolutions of complaints on grievance platforms was found to be 1.66% excluding untraced and repeated calls. Hence, action should be taken in the expedition of redressal of complaints.

**Action: Delhi Police**

- xii. IEC material developed by Environment Department, GNCTD may be shared with Delhi Police.

**Action: Department of Environment, GNCTD, Delhi Police**

- xiii. All SDMs may be declared responsible for noise pollution/violation of their jurisdiction. Maintaining Noise levels in any area/zone as specified in the Schedule. The Noise of the D.G. Sets/cooling towers/Air Conditioners/Compressors installed in Commercial areas, sound emitting construction equipment (including marble & tile cutting machines) and bursting of firecrackers be also strictly implemented by all SDMs.

**Action: Revenue Department**

- xiv. In place of Sub- District Magistrate (Hauz Khas) who was nominated as Nodal officer in the Noise Committee, the District Magistrate (Headquarters) is to be declared as the Nodal Officer.

**Action: Revenue Department**

- xv. Authorised Officer of Delhi Police to strictly implement restrictions on the use of loud speakers/public address systems. While granting permissions for the use of loud speakers/public address system, condition for compliance to sound limiter notification be implemented along with sound emitting construction equipment (including marble & tile cutting machines) and bursting of firecrackers norms. Regular

meetings should be conducted with office bearers of religious institutions for self-regulation of Noise from sound emitting instruments. Sound from mics should be limited to its premises and be pursued to install sound limiters and abide by the noise rules. A task force at appropriate level, most likely at police station level, should be constituted for effective enforcement of noise norms.

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**Action: Delhi Police**

- xvi. Monthly action taken reports of inspections conducted, compensation imposed and compensation collected shall be submitted by the authorized officers to DPCC. Authorized officers need to increase the enforcement actions.

**Action: DPCC**

- xvii. Delhi Police has procured SLMs and has distributed them among ACP/Sub Divisions and SHOs on the directions of Hon'ble National Green Tribunal. Training on use of the instruments need to be ensured. Mandatory condition should be set for sound limited installation in audio system/public address system in permissions being given for functions.

**Action: Delhi Police**

- xviii. Tribunal appointed Committee had observed that procurement of SLMs by the concerned local bodies was highly unsatisfactory. Local bodies may procure more SLMs.

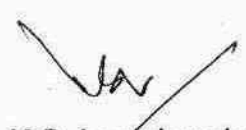
**Action: ULBs**

- xix. Joint Committee under DCP-PCR & SDM (Hauz Khas) to submit consolidated Action Taken Report on implementation of the CPCB approved Noise Pollution Control Action Plan of GNCTD and also the compliance report to above recorded decisions by 05.09.2022 to enable filing of action taken report by Chief Secretary, Delhi by 14.09.2022 in respect of Hon'ble National Green Tribunal's order dated 14.07.2022.

**Action : Joint Committee in coordination with Stakeholder  
Departments**

The meeting ended with vote of thanks to the Chair.

\*\*\*\*\*

  
(Dr. K.S Jayachandran)  
Spl. Secretary (Environment)

To:

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1. Chairman, New Delhi Municipal Council
2. Divisional Commissioner, Department of Revenue, GNCTD
3. Principal Secretary, Public Works Department, GNCTD
4. Principal Secretary (Education), GNCTD
5. Commissioner, Municipal Corporation of Delhi
6. Commissioner, Transport Department, GNCTD
7. CEO, Delhi Cantonment Board
8. Special Commissioner, Delhi Traffic Police
9. DCP-PCR, Delhi Police
10. SDM (Hauz Khas), Department of Revenue, GNCTD

Copy for kind information:

1. SO to Chief Secretary, Delhi.
2. PPS to Secretary (Environment), GNCTD

  
(Dr. K.S Jayachandran)  
Spl. Secretary (Environment)

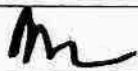
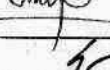
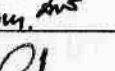


# ATTENDANCE SHEET

Date: 18.08.2022

Time: 4:15 PM

Sub.: Meeting reg. NGT order on Noise Pollution in OA No.519/2016

| S.No. | Name & Designation of the Officer                | Telephone No. | E-mail Address                     | Signature                                                                             |
|-------|--------------------------------------------------|---------------|------------------------------------|---------------------------------------------------------------------------------------|
| 1.    | Arish Kundra P.S (Transport)                     |               |                                    |    |
| 2.    | SHIBESH SINGH Addl CP/Traffic (Zone II)          |               |                                    |    |
| 3.    | Mangra Lata ACP                                  | PCR           |                                    |    |
| 4.    | Neeraj Kumar Meena, JE                           | 989920808     | pus                                |    |
| 5.    | MUKESH MEENA JMD                                 | 9818864022    | pus                                |    |
| 6.    | C.L Meena NDMC<br>EE/Model Officer Air Pollution | 7290059221    |                                    |    |
| 7.    | Sudhir Mehta CE MCD                              | 9717788022    | Chief Engineer Central @ gmail.com |    |
| 8.    | Chamraj Singh (DP)                               | 9808376443    |                                    |   |
| 9.    | Ashok Kumar Sanyal                               |               |                                    |  |
| 10.   | Va Singh DCHA<br>Dir Comm                        | 9810932985    |                                    |  |
| 11.   | Dr. Munish Kumar<br>SDM - Haveli Khari           | 8900984021    |                                    |  |
| 12.   | Col PK DOGRA (Retd.)<br>Consultant, DCB          | 8920964445    |                                    |  |
| 13.   | Tarun Choudhary DPC                              | 971759352     |                                    |  |
| 14.   | Dinesh Jindal LO DPC                             | 9717593515    |                                    |  |
| 15.   |                                                  |               |                                    |                                                                                       |
| 16.   |                                                  |               |                                    |                                                                                       |
| 17.   |                                                  |               |                                    |                                                                                       |
| 18.   |                                                  |               |                                    |                                                                                       |
| 19.   |                                                  |               |                                    |                                                                                       |
| 20.   |                                                  |               |                                    |                                                                                       |

Annexure-II

**DEPARTMENT OF ENVIRONMENT  
GOVT. OF NCT OF DELHI**

Level – 6, C- Wing, Delhi Secretariat, I.P. Estate, New Delhi – 110002  
Ph: - 23392306

F No. 10(30)/Env/2016/

Dated:-

**ORDER**

Whereas, National Green Tribunal vide its orders dated 14.07.2022 passed in OA 519/2016 titled as, "Hardeep Singh & Ors. Versus SDMC & Ors.", regarding Noise Pollution in Delhi, has passed certain directions for controlling environment pollution. The Tribunal further directed that the government should take noise pollution at par with air pollution. Whenever there is any plan to curb air pollution, similar plans must be made to mitigate noise pollution. In addition, the Hon'ble Tribunal further directed to hold a meeting and issue appropriate statutory/ administrative order in the light of the Report, identifying accountable authority/authorities for the steps to be taken for noise pollution control.

And whereas, Delhi Pollution Control Committee has also fixed compensation to be paid for violation in term of the Section 31 (A) of the Air (Prevention and Control of Pollution) Act, 1981 for exceeding the prescribed standards/ polluting the environment.

And whereas, the order of the National Green Tribunal is to be complied by designated officer as a decree/order of Civil Court.

And whereas, the GNCTD has designated All Deputy Commissioner (Revenue), All SDMs, Asst Commissioner of Police Control Room, All Sub Divisional Police Officer Including Railways & Airports, Chairman and Member Secretary of DPCC and ACP (Traffic) under the provisions of Noise Pollution (Regulation & Control) Rules, 2000. Further, GNCTD has also proposed Assistant Commissioners of Municipal/ Local bodies of Delhi as a designated authority.

Therefore, in pursuance to the Tribunal's orders and Noise Pollution (Regulation and Control) Rules, 2000 designated authorities and action to be initiated by Different agencies are as follows:

| Designated Authority under Noise Rules                    | Action Points                                                                                                                                                                                                                                                                                                                 |
|-----------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| All Deputy Commissioners, Govt. of N.C.T. of Delhi.       | I. Maintaining Noise levels in any area / zone as specified in the Schedule.<br>II. Responsible for due compliance with the ambient air quality standards in respect of Noise.<br>III. Compliance to the sound limiter Notification. No audio system/public address system shall be let out/ installed without sound limiter. |
| All Sub Divisional Magistrates, Govt. of N.C.T. of Delhi. | I. Action regarding Noise of the D.G. Sets/ cooling towers/ Air Conditioners/ compressors installed in Commercial areas.<br>II. Restrictions on the sound emitting construction equipment (including marble & tile cutting machines) and bursting of firecrackers.<br>III. Regular meetings with RWAs/ NGOs/                  |

|                                                                                                                                     |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
|-------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|                                                                                                                                     | <p>Schools/ Colleges etc. for awareness on Noise Pollution Control.</p> <p>IV. Issue directions to prevent annoyance, disturbance, discomfort or injury to public or any person caused by the incidence or continuance noise at any premises due to any vocal or instrumental music, sound caused by playing, beating, clashing, blowing, appliances, or apparatus etc.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
| <p>Asstt. Commissioners of the Police control room.</p> <p>All Sub Divisional Police Officers including Railways &amp; Airports</p> | <p>I. Maintaining Noise levels in any area /zone as specified in the Schedule.</p> <p>II. Restrictions on the use of loud speakers/public address systems (and sound-producing instruments).</p> <p>III. Grant of permissions for the use of loud speakers/public address system with implementation of sound limiter Notification. In Delhi, the installation of Sound limiters in sound systems is mandatory. To act upon these directions and implemented in social functions. To take undertaking from the organizer as a pre-condition for permitting playing loudspeakers.</p> <p>IV. Restrictions on the sound emitting construction equipments (including marble &amp; tile cutting machines) and bursting of sound emitting firecrackers.</p> <p>V. To conduct regular meetings with office bearers of religious institutions for self-regulation of Noise from sound emitting instruments. Sound from mics should be limited to its premises and be pursued to install sound limiters and abide by the noise rules.</p> <p>VI. To issue such directions necessary to any person for preventing, prohibiting, controlling or regulating noise at his premises.</p> <p>VII. Implementation of restrictions related to aircraft noise.</p> |
| <p>Chairman and Member Secretary of Delhi Pollution Control Committee, Delhi.</p>                                                   | <p>I. Maintaining Noise levels in any area/zone as specified in the Schedule.</p> <p>II. To ensure compliance to the ambient air quality standards in respect of Noise.</p> <p>III. Action regarding Noise of the D.G. Set/ cooling towers/ Air Conditioners/ compressors, if installed in Industrial areas.</p> <p>IV. DPCC to maintain and operate real-time noise monitoring stations and share monitoring data with land-owning agencies, which includes Hotspots also.</p> <p>V. To collect, compile and publish technical and statistical data relating to noise pollution and measures devised for its effective prevention, control and abatement.</p> <p>VI. Compilation of action taken by</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |

|                                                                        |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
|------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|                                                                        | <p>enforcement agencies for data analysis.</p> <p>VII. To coordinate the awareness campaigns through the Department of Education, Transport, and Environment.</p> <p>VIII. Feasibility to be explored regarding globally available noise tracking system.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
| Assistant Commissioners of Police (Traffic)                            | <p>I. Restrictions on the use of horns by vehicles except for electric horns.</p> <p>II. Implementation of silence zone notification.</p> <p>III. Restrictions on the use of modified silencers.</p> <p>IV. Conduct noise pollution control awareness campaign.</p> <p>V. To ensure free traffic flow, reduce idling vehicular Noise, and strictly enforce 'no-honking' zones/silence zones.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| Assistant Commissioners of Municipal/ Local bodies of Delhi (PROPOSED) | <p>I. To take action against noise of the D.G. set/ cooling towers/ air conditioners/ compressors, if installed in residential areas.</p> <p>II. Issue directions to prevent annoyance, disturbance, discomfort or injury to public or any person caused by the incidence or continuance noise at any premises due to any vocal or instrumental music, sound caused by playing, beating, clashing, blowing, appliances, or apparatus etc.</p> <p>III. To plant more trees around the roads, so they act as noise barriers.</p> <p>IV. To conduct regular meetings office bearers of religious institutions for self-regulation of noise instruments. Sound from mics should be limited to its premises and shall be pursued to install sound limiters and to abide by the noise rules.</p> <p>V. Conduct noise pollution control awareness campaign.</p> <p>VI. In Delhi, the installation of Sound limiters in sound systems is mandatory. To act upon these directions and implemented in social functions. To take undertaking from the organizer as a pre-condition for permitting playing loudspeakers.</p> <p>VII. To take into consideration all aspects of noise pollution as a parameter of quality of life to avoid noise menace and to achieve objective of maintaining air quality standards in respect of noise, while planning developmental activity or carrying out functions relating to city planning.</p> |

**Other Compliances:**

- i. Joint Committee of DCP-PCR to undertake implementation of approved Noise Pollution Control Action Plan.

- ii. DPCC directions issued on 25.06.2021 regarding adoption of the scale of compensation for violation of Noise Rules, 2000 be complied in its letter and spirit (**Annexure I**). Monthly ATR need to be submitted.
- iii. It shall be the responsibility of the above mentioned agencies/ officers to ensure that coordinated action is taken to ensure that local sources of noise pollution as outlined above are completely curbed.
- iv. Systematic efficiency to be improved so that the complaint noted by the inspecting teams and/ or filed by the public on Sameer App/ Green Delhi App/ dedicated webportal/ exclusive noise helpline and ERSS-112 are obviated. Complaints (if any) received to be liquidated within 2 hours by the concerned designated authority.
- v. Detailed reports are to be submitted to the nominated officer of GNCTD as a Nodal officer (Noise Pollution) to Joint Committee, constituted by Hon'ble NGT, on fortnightly basis with a copy to DPCC.
- vi. The above directions given in pursuance of the order dated 14.07.2022 of the Hon'ble Green Tribunal to be complied in its letter and spirit. In case of any non – compliance, the concerned HOD/nodal officer(s) will be held responsible personally and appropriate action will be taken for such negligence.

The compensation amount so collected shall be deposited in Delhi Pollution Control Committee, having account no. 10166747672, IFSC Code SBIN0005715 in State Bank of India, ISBT. Kashmere Gate, Delhi.

Also, Weekly action taken reports of inspections conducted, compensation imposed and compensation collected shall be submitted by the authorized officers to Delhi Pollution Control Committee, without fail.

(Naresh Kumar)  
Chief Secretary, Delhi

To,

1. Commissioner of Police, Delhi Police
2. Divisional Commissioner, GNCTD
3. Commissioner, Municipal Corporation of Delhi
4. Chairman New Delhi Municipal Council
5. CEO, Delhi Cantonment Board
6. Member Secretary, DPCC

**Copy for kind information to:**

1. Principal Secretary to Hon'ble Lt. Governor, Delhi
2. Secretary to Hon'ble Chief Minister, GNCTD
3. Secretary to Hon'ble Minister (Environment & Forest), GNCTD
4. OSD to Chief Secretary, Delhi

(Naresh Kumar)  
Chief Secretary Delhi

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**REGARDING ACTION TAKEN AND PROGRESS REPORT IN OA  
No.519/2016 IN THE MATTER OF HARDEEP SINGH AND ORS. VERSUS  
SDMC & ORS.**

Annexure - III

**MOST RESPECTFULLY SHOWETH:**

That this ATR & progress report is being filed in pursuance of the orders of Hon'ble National Green Tribunal dated 14.07.2022 in MA No.41/2022.

The operative paragraphs of the Hon'ble NGT's order are as under:

**PARA: 4**

*We consider it appropriate to direct the Chief Secretary, Delhi to hold a joint meeting with the concerned departments, including Municipal Corporation Delhi, Commissioner of Police, Environment Department, Education Department, Transport Department, DSLSA, NDMC, Delhi Cantonment Board, DPCC, CPCB within one month for brainstorming on the report and issue appropriate statutory/ administrative order in the light of the Report, identifying accountable authority/ authorities for the steps to be taken. The Chief Secretary, Delhi may file an action taken report within two months with the Registrar General, NGT by e-mail at [judicial-ngt@gov.in](mailto:judicial-ngt@gov.in) preferably in the form of searchable PDF/OCR Support PDF and not in the form of Image PDF which may be placed before the Bench, if found necessary.*

That in order to comply with the above-mentioned directions and earlier orders of Hon'ble NGT, in letter and spirit, following efforts and steps were taken by this Joint Committee:

**1. Assigning Responsibilities & Performance Appraisal.**

In compliance to the orders of Hon'ble Tribunal and in pursuance to the directions of the Monitoring Committee of Noise Pollution headed by Justice Sh. S.P.Garg, former Judge of Hon'ble Delhi High Court, the following initiatives were taken by this Joint Committee.

**a) Conduct of Regular Meetings with stake holder departments.**

- As mandated by Hon'ble NGT, regular meetings were conducted with the Nodal Officers of Revenue Dept, Transport Dept, Education Dept, PWD, Traffic Police, CPCB, DPCC, NIC, local and civic bodies etc. In these meetings, the action taken during the period and performance appraisal of the department is being done by DCP & SDM jointly. The proceedings of the meetings

are properly minutised and circulated to all stakeholders for compliance.

- In 2022, joint meetings of Nodal Officers of GNCT & Delhi Police were conducted at fixed intervals and nine proactive meetings were held for better co-operation and co-ordination among stakeholder enforcement agencies.
- On the directions of the Chief Secretary, GNCT, Delhi, henceforth, Dy. Commissioner-NGT/ENV is nominated as Nodal Officer of Noise Pollution from Revenue Department, GNCT in place of SDM, Hauz Khas. It was further notified that all SDMs should be held responsible for Noise Pollution/Violations in their respective jurisdiction.

**b) Devised proformas for seeking ATRs from local bodies**

On the directions of the hon'ble Chairman of the Monitoring Committee, two specific proformas were devised by this Committee for seeking information from civic bodies. In the proformas, the information pertaining to inspections and actions taken at the vulnerable spots such as construction sites, religious institutions and banquet halls, use of sound level meters, efforts done for creating mass awareness are specifically sought and discussed in the meetings.

**c) Procurement of Sound level meters**

- On the directions of hon'ble NGT, Delhi police has procured 244 No's of sound level meters and distributed them among ACsP/Sub Divisions and SHOs.
- On pursuance of this Committee, the local bodies have also procured sound level meters. As per the latest figure, the Municipal Corporation of Delhi is equipped with twenty-one SLMs, Delhi Cantt. Board with one.

**d) Strengthening & functioning of Public Redressal System**

As mandated by Hon'ble NGT, the functioning of public redressal system for receiving complaints and their redressal by the enforcement agencies, is discussed in the meetings. The receipt, disposal & pendency of the complaints on five platforms of public redressal system viz. dedicated web portal - [ngms.delhi.gov.in](http://ngms.delhi.gov.in), exclusive helpline - 155271, Green Delhi App, SAMEER App and ERSS-112 are regularly discussed and concerned departments are

*Wnsat red*

reminded of their responsibility to dispose off the pendency within the time frame. 25

## 2. Association of Experts & Research

In recent times, Noise Pollution has been well recognized as one of the major trepidations that impact the quality of life in urban areas. Hence, to reduce the detrimental consequences of noise pollution, a more stringent and impeccable set of decisions that could govern the issue coupled with technological advancements is the need of the hour. There are different types of noise sources and a lot of issues are involved in effective control of noise, which cannot be easily controlled without the association and active participation of experts, researchers, scientific bodies, policy makers and NGOs.

To address the above issues, the following experts are engaged with this committee and are requested to provide their valuable suggestions and feedback on the matter.

- *Sh. J.S. Kamyotra, former Member Secretary, CPCB*
- *Dr. Naveen Garg, Principal Scientist & head of Acoustics & Vibration Standards, CSIR, National Physical Laboratory*
- *Dr. Naseem Akhtar, Principal Scientist, CSIR-CRRI*
- *Dr. Vishal Gandhi, Sr. Scientist, CPCB*
- *Dr. M.P. George, Sr. Scientist, DPCC*

### **Their suggestions are summarized below**

- Sh. J.S Kamyotra, former Member Secretary proposed that in order to mitigate noise pollution.
  - a) Exposure to hazardous noise at the factories, workplaces and construction sites should be reduced by using quiet, silenced equipment, adopting quieter alternative techniques, using noise control measures like silencers, barriers, enclosures, erecting warning signs, using time restrictions and providing personal hearing protection equipment.
  - b) The noise exposure by traffic noise could be reduced by quieter vehicles, quieter tires, quieter road surfaces, traffic measures such as speed monitoring & reduction, erecting of noise barriers and home insulation etc.
  - c) The third point on which he stressed that a dedicated grievances redressal portal may be developed with specified timelines for disposal.
  - d) Specific guidelines for Indian scenarios be prepared and distributed to all stakeholders for compliance at vulnerable spots such as factories, construction sites and during celebrations.

- e) Hotspots should be identified and surveillance should be observed and kept at such places.
- *Dr. Naveen Garg, Head Acoustic & vibration standards, National Physical Laboratories, Delhi* has informed that he had already conducted a one-day workshop on 17th Dec, 2022 on the subject, *Mapping Noise Control*. He is regularly providing assistance to State Noise Pollution Control Boards, about the technical issues, concerning noise pollution. He suggested that proper identification of hotspots may be done and control measures may be adopted, to curb & control noise pollution.
- *Dr. Naseem Akhtar, Expert from CRRRI* focused on the issues of compliance of existing guidelines and developing new standards on the basis of Indian scenario. He stressed that the use of SLMs should be increased for noise standards, precautions to be observed at factories, construction sites and high traffic areas, He suggested that cities may be declared no honking areas and if allowed their frequency should be minimal. He has drawn the attention of the Committee that the existing DPCC monitoring stations should be stationed at prime hotspots and not away from noisy areas otherwise their measurements would not be accurate & reliable.
- *Sh. Vishal Gandhi, Sr. Scientist, CPCB* has also presented a power point presentation on the measures for abatement of noise pollution and following issues pertaining to noise pollution were explained
  - a) Concept of Noise
  - b) Control measures of source
  - c) Control at recipient end
  - d) Mitigation measures
  - e) Methodology

### **3. Development of Legal framework of Noise Pollution**

In this pursuit, the legal provisions prevalent in the states of Tripura & West Bengal were discussed in the meeting. *Sh. Vishal Gandhi, Sr. Scientist, CPCB* explained the main clauses of noise law of these states and underlined the provisions, which needs to be implemented in Delhi. In this reference, mentioning of the noise action plan of GNCT Delhi was also made and after detailed discussion on every aspect, three specific directions were given by the Monitoring Committee and this Joint Committee to overcome practical difficulties of field staff.

#### **A) Empowerment of Local Bodies**

- In Delhi, the local & civic bodies viz. MCD, NDMC and Delhi Cantt. Board are not empowered to initiate any legal action under Noise Pollution (Regulation & Control) Rules. Regarding violations, the only option available to them is to report the violation to designated authorities.
- Draft notification empowering Asst. Commissioner of Local bodies proposed under provisions of the Noise Pollution (Regulation and Control) Rules, 2000 is under consideration of Delhi Government, for necessary approval.

#### **B) Permission for Loudspeakers**

- It was directed that Dept. of Env. & Forests, GNCT, to issue a fresh notification w.r.t, Authority empowered to grant permission for loudspeakers and to insert the provisions of Gazette notification of sound limiter, which is under process.
- Delhi Police is designated as an authority and directions were issued that compliance of Noise Rules should be made mandatory in the prior permission and an undertaking may also be obtained from the organizers that they should use sound limiters and abide by the statutory rules of day and night time and permissible noise limits.

#### **C) Delegation of Authorities**

- (On the directions of Hon'ble NGT, Delhi police has procured 244 No's of sound level meters and distributed them among ACsP/Sub Divisions and SHOs.)
- On critical evaluation, only one hundred sixty-seven (167) actions were reported, utilizing the sound level meters in 2022. The reason for low actions was that SHOs are not designated as an authority to prosecute under Noise pollution rules.
- For delegation of authorities to all SHOs in Delhi, DPCC, vide its letter dated 30.03.2022 followed by reminder on 07.07.2022 had requested MOEF&CC, Government of India to suitably amend the Notification No. S.O.394 (E) dated 16.04.1987 and all SHOs of Delhi Police may be inserted in the said Notification as an authorized officer under Section 19 of the Environment (Protection) Act, 1986, for the violation of the Noise Rules, 2000 at the earliest. MoEF&CC, GOI on 10th August, 2022 has further requested CPCB to examine the proposal. So far, no further response received from CPCB.

- It was also directed that the data of prosecution should be shared with the media, so that it serves as a deterrent for others.
- A drive/campaign against honking was also launched w.e.f. 28<sup>th</sup> Feb, 2022 to 05<sup>th</sup> March, 2022, in which 23,320 vehicles were checked at 44 locations in Delhi and people were sensitized regarding hazardous effects of noise pollution.
- In the period w.e.f. 01.01.2022 to 15.09.2022, 2,288 challans were issued against the use of pressure horns, 129 against honking in silent zones, 5,872 against modified exhausts/ silencers and 146 against playing loud/high pitch music in vehicles by Delhi Traffic police.

In compliance to the directions of the meeting of Chief Secretary, Delhi held on 18.08.2022, following actions were initiated by Transport Department:

- Transport Department has prepared a media campaign for the awareness of "No Honking Day" for 2<sup>nd</sup> day of every week. The file for the media campaign has been sent to DIP and Enforcement Branch of the Transport department has been sensitized for necessary action during this event.
- The Transport department has directed their operation & taxi unit to convey the directions to the community Taxis like Ola & Uber, to include the points like unnecessary honking, using pressure horns in their feedback forms.
- The Enforcement Branch of Transport department has been directed to keep more emphasis for challaning the vehicles, which are unnecessary honking and for smooth flow of traffic. The enforcement teams are already deployed for maintaining bus lane discipline.
- SDM/Hauz Khas, the Nodal Officer of noise pollution for GNCT, Delhi is working on the proposal for control of illegal sale of modified silencers & pressure horns in markets, in coordination with trade & taxes departments and is preparing a draft for circulation to all areas SDMs in Delhi for effective implementation on ground.

## 6. Construction Sites

In India, urbanization is developing very fast and huge buildings are being constructed at the fastest speed. During demolition of old sites and construction of new buildings, huge machines which produce a lot of noise are being commissioned and it has become a common scene in Delhi where

construction work is in progress. A lot of noise is created during the construction or repair work of roads in cities.

In this reference, the Officials of DPCC and PWD departments were involved to prepare the guidelines for the construction sites & private contractors. It was informed by the PWD Officials that the ambient noise level at construction sites of PWD, is within the prescribed limits because all plants and concrete production units are located away from residential areas of Delhi. Regarding private construction sites, some specific guidelines are required, so DPCC was directed to prepare them. After a detailed discussion on the issue, it was observed that:

- ULBs and DPCC are conducting regular field inspections through field staff, for proper sensitization and enforcement of rules.
- The framing of guidelines for construction sites is in process with DPCC.
- ULBs and DPCC are also launching campaigns for checking of construction sites with the help of sound level meters.
- Transport Dept. is also taking actions against the tractors used for commercial purposes.

## 7. Religious Places

OA No. 196-197-496/2017 were specifically related to noise violations committed by use of amplifiers and loudspeakers at religious places. In this reference, the directions of the Hon'ble Apex court were pointed out, thus:

*"The Union and state government to ensure that the noise level at the boundary of the public places, where loudspeakers and public addresses are used as per law, should not exceed 10 db (A) above the ambient noise standards for the area or of 75 db (A), whichever is lower"*

In pursuant to above, following actions were taken by local bodies & SHOs, thus:

- Regular meetings were conducted by local bodies and SHOs concerned with office bearers of religious institutions for self-regulation of noise instruments.
- Delhi police alone has conducted 1726 meetings with office bearers of religious institutions and local bodies are also conducting regular meetings.
- They were pursued to install sound limiters and to abide by the noise rules.

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- Regular feedback was obtained from the local bodies and Police Stations regarding actions taken & result thereof.

### 8. Awareness Measures

Awareness is one of the essential ingredients of developing belief. If you are aware then this will give you knowledge, to know what you need to do and the direction you need to go to make changes or improve. The same doctrine applies to awareness w.r.t. crackers, air pollution, noise pollution etc. Awareness about the ill effects of noise pollution can lead to dramatic and positive effects resulting in making people more aware, proactive, responsible and conscious. If the people are aware & conscious Seventy-five percent work is accomplished.

In the meeting of the Chief Secretary Delhi held on 18.08.2022, it was directed that:

- Concerted IEC drive on behavioral aspects as well as ill effects of Noise Pollution on FM Radio must be carried out with the help of DIP. Services of Brand Ambassador (for example: Commonwealth Games Medal Winners) may be taken.
- Department of Environment, GNCTD may also explore development of an online module where participants can download certificates of participation and become awareness warriors. The module can be in the form of digital community like mygov.in where participants can upload videos etc.
- The ill effects of Noise can reach citizens if renowned ENT doctors of reputed Hospitals can talk over 10 to 15 second clippings for wide dissemination amongst public. Use of social media to sensitize and motivate people to follow noise norms.

The stake holder departments have taken following actions:

- Deptt. of Environment has distributed one lac pamphlets to 15 Police Stations, 11 DM Office & 12 Dy. Director Office @ 2500 each, on dated January 10, 2022. On 12 August 2022, an advertisement on awareness of noise pollution was published in 14 dailies. Further, an annual calendar of monthly activities regarding noise pollution for Eco-Clubs was also distributed among schools & colleges. They are also incorporating noise awareness in information, education and communication (IEC) through online classes to all students.
- Directorate of Education, GNCT has uploaded PDF material related to different types of pollution, reducing carbon footprint, cleanliness

drives, tree plantation, global warming, healthy food and hygiene on website of the Department of Environment, so that all schools should comply with them.

- Delhi Police has broadcasted awareness messages on eight FM channels w.e.f., 10.05.2022 to 19.05.2022 (10 days). The noise awareness messages were played on FM Channels in the slots of 50 seconds. Further, 1729 sensitization meetings were also conducted at Police Station. In addition to above District DCsP are also uploading awareness messages on their social media accounts on Facebook, Twitter and Whats-App groups to sensitize and motivate people to follow noise norms.
- ULBs are also spreading awareness through social media platforms, jingle music in garbage collecting vans, pamphlets, posters and educational institutions. Further, the awareness messages are also flashed on community screens installed at vital installations like hospitals, clubs etc., and the services of NGOs associated with ULBs is also being utilized for the purpose. They are regularly conducting meetings with RWAs & MWAs to sensitize them about the provisions of noise rules.
- DSLSA is organizing a lot of awareness initiatives through street plays, door to door campaigns etc. These services are being utilized for spreading awareness.

#### **9. Actions by Delhi Police on Public Grievances System**

The analysis of grievances on different platforms up to 18.09.2022 are as under:

- On an annual analysis of web portal data, it was observed that 983 grievances were received up to 18.09.2022. Out of 983, 05 legal actions taken, 147 untraced, 752 filed and 79 were found to be repeated.
- On exclusive helpline 1,224 calls were received up to 18.09.2022 and 11 legal actions, 159 untraced, 276 filed and 78 calls were found to be repeated.
- On ERSS-112, total 19,673 calls were received, 190 legal actions, 3,891 untraced and 12,906 filed and 2,686 found to be repeated.
- On Sameer App, a total 303 grievances were received in which 298 were resolved and 05 are pending. On Green Delhi App, a total 730 grievances were received in which 726 were resolved and 06 are pending with Delhi Police up to 18.09.2022.



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Annexure-IV (Colly)

**NOISE POLLUTION CONTROL COMMITTEE**  
**MINUTES OF THE MEETING**

{22<sup>nd</sup> July, 2022}

In compliance with the directions of Hon'ble NGT in OA No.519/2016, read with 196-197-426/2018, in the matter of Hardeep Singh & Ors. vs SDMC & Ors. and Akhand Bharat Morcha vs Union of India & Ors., the Joint Meeting of the Noise Pollution Control Committee was held at 1100hrs. on 22.07.2022, through video conferencing.

The meeting was held in the Chairmanship of the undersigned and following officers had also attended the meeting:

1. Sh. Kaushal Kishore, Dy. Secy., Dept. of Env., GNCTD,
2. Sh. Sudhakar Gaikwad, Dy. Director, Education Department,
3. Dr. Anwar Salim, State Coordinator, Education Department,
4. Dr. M.P. George, Sr. Scientist, DPCC,
5. Dr. BMS Reddy, Sr. Scientist, DPCC, I/C Green Delhi App,
6. Sh. Trilok Chand, Env.Eng, DPCC,
7. Col. P.K. Dogra, Consultant, DCB,
8. Sh. Pankaj Kumar Jain, SE, MCD,
9. Sh. C.S. Mangla, AE, South MCD,
10. Sh. C.L. Meena, EE, NDMC,
11. Sh. Neeraj Kumar Meena, SE, PWD,
12. Sh. Rakesh Vaidya, Inspector, Transport
13. Sh. Sanjeev Sharma, NIC
14. Sh. Om Prakash Srivastava, PLV. DSLSA,
15. Sh. Kartik Kumar, PLV. DSLSA,

Despite services of meeting notices to SDM/HQ, the Nodal Officer of GNCT was not present. In the previous meeting held on 09.06.2022 too, the Nodal Officer of GNCT hasn't responded. The representative of Delhi Traffic Police was also not present in this meeting.

The meeting commenced with welcome address underlining the priorities and objectives set before the committee. All the members were reminded about the latest orders of Hon'ble NGT in MA No.41/2022 in OA No. 519/2016, in which Hon'ble Tribunal has directed Delhi Chief Secretary, to consider the recommendations of the Monitoring Committee, hold a

meeting with the departments concerned within one month and submit an ATR within two months. (33)

In pursuance to the above, the following agenda points were discussed in the meeting.

### **1. Submission of fortnightly report by local bodies**

The meeting began with the analysis & scrutiny of reports submitted by local bodies on the prescribed format A & B. All the Nodal Officers were directed to apprise the Committee about the efforts done by them during the period from 16 to 30<sup>th</sup> of June, 2022 and special emphasis was laid on the actions w.r.t., new compensation regime, Sound limiters and hotspots.

#### **Presentation of reports:**

##### **MCD**

*Sh. Pankaj Kumar Jain, Nodal officer of MCD* informed the Committee that they have conducted 65 inspections comprising 13 of construction sites, 30 of religious institutions and 16 of Banquet halls. SLMs were used in 40 inspections. For awareness purposes, they have conducted 44 sensitization meetings of noise pollution and 20 meetings with RWAs, MWAs and NGOs and 358 awareness programs. Further, no action was initiated w.r.t. hotspots.

The Nodal officer of MCD was directed to check the pollution levels around the DPCC's identified hotspots and take suitable action to mitigate it. The action taken should also be shared with this Committee.

##### **DCB**

For Delhi Cantt. Board, *Col. P.K. Dogra, Consultant*, has presented his report that they have conducted 39 suo-moto inspections, in which 36 of construction sites, 03 of religious institutions. SLMs were utilised in 19 inspections. For awareness purposes, they have conducted 03 sensitization meetings of noise pollution and 02 meetings with RWAs, MWAs and NGOs.

Further, *Col. Dogra*, informed the Committee that no specific construction activities are going on, but they are keeping a close eye on the small routine basis construction activities in their area. Drawing and slogan competitions were organised in 05 schools and street plays/nukkad nataks are regularly being organized in schools on alternate basis. Though, they have no hotspots in their area but on regular basis social media and awareness through display units

installed at vital installations are being utilized for awareness purposes. (37)

#### **NDMC**

Sh. C.L. Meena. EE, has submitted a nil report. He informed the Committee that the report has not been received from the NDMC zones, so he has submitted a nil report.

In this reference, he was reminded that the non-receipt of the reports from the zones is an internal matter, which should be sorted out at institution level and should not be an excuse for submission of nil report. He was further directed to collect the report from all the zones and submit it within two days.

(Action by: Nodal officers, local bodies)

#### **2. Awareness efforts by Dept. of Environment & Forests and Education, GNCT**

Sh. Kaushal Kishore, Dy. Secretary, Dept. of E&F, GNCT, informed the Committee that:

- a) *The annual calendar along with the pointers are re-distributed among Eco-clubs, comprising 2000 schools and colleges. Compliance and regular monthly report are being called for, from the above institutions.*
- b) *An advertisement on noise awareness has also been sent for publication in 14 newspapers and expected that it will be published within this week.*
- c) *A jingle music on noise awareness is also under preparation, which will be circulated to the institutions, by the end of the month of August.*
- d) *The file related to FM channels has already been sent to Directorate of Information & Publicity for approval.*

Dr. Anwar Salim, State Coordinator Education Department, informed that the following initiative/measures in respect of greening in the schools, to control air & noise pollution have been taken by DOE.

1. *Target of 1 Lakh 50 thousand plantation was set for session 2022-23 and the same will be achieved by the School of DoE.*
2. *Sixty-Eight Thousand One Hundred Seventeen sapling planted in month of June, 2022.*
3. *A Special Tree Plantation/ Greening Drive during Van Mahotsav in Delhi Schools will be celebrated on 10th August 2022.*
4. *Extra emphasis has been put on eco-club in the schools for maintaining greening environment in the campus of schools.*

- (35)
5. Directorate of Education sensitization work shop was organized to all Eco club in-charge, teachers and students separately with collaboration of Delhi State Legal Service Authority (DSLISA)
  6. Awareness programs on different thematic area of environment have been jointly coordinated with the help of Environment Department
  7. Awareness materials on environment were circulated to schools on air pollution for classes 7<sup>th</sup> to 9<sup>th</sup> using various teaching learning activities.

(Action by: DOE&F & Education)

### 3. Preparation of guidelines w.r.t. Construction sites

Progress with respect to preparation of guidelines, Dr. M.P. George informed the committee that draft is ready but the comments of Traffic Unit are awaited. He requested that Delhi Traffic police may be directed to expedite, so the proposal could be finalised.

In this reference ACP/Delhi Traffic Police is directed to submit proposal and suggestions on priority, so that the draft could be finalised.

(Action by: DPCC & Traffic Police)

### 4. Development of legal framework

Sh. Dinesh Jindal, law officer, DPCC apprised the committee that all the three proposals are presently under consideration.

- The file related with empowerment of local bodies is pending in the Ministry of Environment, GNCT, Delhi.
- The file concerning delegation of authority to SHOs has been sent to Ministry of E&F, GOI and one reminder was also issued in the month of June, 2022 but it is still pending.
- Regarding permission of loudspeakers, the file is pending with Addl. Chief Secretary, as presently the post of Pr. Secretary Environment & Forests is running vacant.

In this reference, Law Officer was reminded about the directions of Monitoring Committee and asked to expedite the matter. He was directed to pursue the matter on personal basis.

(Action by: Law Officer, DPCC)

### 5. Measures to Control Traffic Noise

Sh. Rakesh Vidya, Insp. Transport Department, informed the Committee that all possible measures like challans of pressure horns, unnecessary honking etc., are being adhered, to control noise pollution in Delhi.

36

He was reminded that Hon'ble Monitoring Committee has directed to observe no honking weeks etc. and to give wide publicity to such measures. He was further directed to take actions against modified silencers and to furnish a detailed report of action taken by Transport Department.

None from Traffic Unit has attended the meeting. In future, it should be ensured that suitable officer from Traffic Unit should attend the meeting, to apprise the Committee about the action taken during the period.

*(Action by Traffic Police & Transport department)*

## 6. Actions by Delhi Police

### a) Complaints received on Dedicated Helpline, Web Portal & ERSS-112

The complaints received on various platforms i.e., *dedicated web portal, exclusive helpline and ERSS-112* were placed before the Committee.

This year up to 17.07.2022, total **17,968** complaints/calls were received on web portal, helpline and ERSS-112. On analysis, it was found that **816** complaints were received on web portal, **903** on exclusive Helpline and **16,249** on ERSS-112.

Regarding action taken, it was found that total **183** legal actions initiated, **3,692** complaints reported untraced, **11,733** complaints filed and **2,360** complaints were found repeated. The percentage of legal actions initiated was found to be only **1.54%** excluding untraced and repeated calls.

After analysis of the above figures, it was observed that:

- a. *The overall action percentage of this year has shown a downtrend from the previous year. This year it was found to be only 1.54%.*
- b. *During this year, the action percentage was found to be 0.81% on the web, 1.27% on the helpline and 1.60% on ERSS-112.*
- c. *On head wise action analysis, 86% actions were found to be related with loud speakers from 10PM to 6AM.*

Nodal Officers of the districts are requested to direct the field staff to increase the prosecutions and legal actions as the figure of action taken is very low in comparison to the comparative figures of the previous years.

*(Action by District DCsP)*

135  
37

**b) Complaints received on Green Delhi and SAMEER App**

On analysis of data of Green Delhi App, it was found that **698** grievances were forwarded to Delhi Police, till 17.07.2022, in which **59** grievances are pending with the Delhi Police. **(25 with DAP Malviya Nagar, 19 with South, 05 with Outer, 02 each with West, Dwarka, Outer North & South West and 01 each with North-East, South-East districts).**

On SAMEER App, **289** complaints forwarded to Delhi Police till 17.07.2022, in which **23** grievances are pending with Delhi Police (09 with South-East, 05 with South, 03 Central, 02 with East and 01 each with North-East, Dwarka, Outer-North & South-West districts)

After the presentation of above data *Dr. BMS Reddy, I/C, Green War Room* has drawn the attention of the Committee towards rampant violation of noise norms by banquet halls in Shalimar Bagh area.

He was informed that though regular actions are being initiated by police against noise violation, but sometimes due to lack of specific laws & provisions, the effect is minimal. Normally, it is not feasible and practical for designated authorities i.e. ACP rank official, to visit the spot and in such circumstances, local police take actions under local or special laws, whose effect is not so apparent and perceptible.

All the Nodal Officers of the districts are requested to dispose-off the pendency at the earliest.

*(Action by: Addl. DCsP/Districts)*

**7. Suggestions of Para Legal Volunteers**

*Sh. Kartik Kumar, PLV from DSLSA*, informed the Committee that noise awareness drives were conducted through Anganwadi centres by them in the month of July and other measures like door-to-door campaigns, meetings with RWAs can also be conducted. He was requested that he should take initiatives and apprise the Committee about progress & development done during this period.

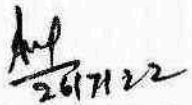
*Sh. Om Prakash Shrivastava, PLV* was also requested to follow *Sh. Kartik Kumar* and report the initiatives to this Committee.

**8. Concluding Address**

The meeting concluded with the remarks that Justice S.P. Garg, has specifically and clearly assigned duties and functions of various agencies for controlling noise pollution in Delhi. Now the same would be reviewed by Delhi Chief Secretary. Though some agencies are doing nice, but some departments are lagging and taking the matter casually. It is directed that

all such agencies should speed up their efforts and take suitable actions for controlling noise pollution. As per latest data, the level of noise pollution is becoming deadly in Delhi and it is the first and foremost duty of all agencies to take necessary steps to control it. Keep the sound down or the noise will keep you down.

The meeting ended with a vote of thanks.

  
(ANAND KR. MISHRA),  
Nodal Officer, Noise Pollution,  
cum DCP/OPS., Delhi

No. 365 - 401 NGT Sectt. /PHQ, dated Delhi the 26 / 07/2022

Copy forwarded to:

1. DCsP All Districts & Traffic,
2. DCP, Legal Division,
3. SDM, HQRS
4. Dr. Naveen Garg, Head, Acoustics & Vibration Std, NPL,
5. Dr. Anwar Salim, State Coordinator, Education Department,
6. SO to Chief Secretary, GNCT,
7. PA to Justice S.P. Garg, Chairman Monitoring Committee,
8. PA to Pr. Secretary, Dept of Environment, GNCTD,
9. PA to Commissioner, MCD
10. PA to Commissioner, Transport Department, GNCT, Delhi,
11. PA to Secretary, New Delhi Municipal Council,
12. PA to CEO, Delhi Cantonment Board,
13. PA to Director Education, GNCT Delhi
14. PA to the Engineer in Chief, PWD
15. SOs to Spl. CsP/Traffic Division, L&O Division I & II,
16. SOs to Addl. CP/Eastern Range,
17. SO to OSD to CP/Delhi,
18. PA to Member Secretary, CPCB & DPCC,
19. PA to DSLSA

  
SILENCetheNOISE.in

Delhi Such: 2022  
GADIN & BIRTH  
Govt. of NCT of Delhi  
12 SEP 2022  
Diary No. SAD/2022/28854



29  
13 SEP 2022

**NOISE POLLUTION CONTROL COMMITTEE**

**MINUTES OF THE MEETING**

{30<sup>th</sup> August, 2022}

In compliance with the directions of Hon'ble NGT in OA No.519/2016, read with 196-197-496/2018, in the matter of *Hardeep Singh & Ors. vs SDMC & Ors. and Akhand Bharat Morcha vs Union of India & Ors.*, the Joint Meeting of the Nodal Officers of Noise Pollution Control Committee was held on 30.08.2022 (Tuesday) at 1115 hrs., through video conferencing.

In the meeting the undersigned represented Delhi Police and Dr. Mukesh Kumar, SDM/Hauz Khas and Sh. Kuldeep Lohan, District Project Officer, DDMA represented GNCT Delhi.

At the outset, after a formal introductory session, the retrospective progress of the matter and the purpose and objectives of this Committee were briefly explained to the new Nodal officer of GNCT, Delhi.

**1. A Retrospective Progress**

It was briefed that OA No. 519/2016 was instituted in Hon'ble NGT against the use of loudspeakers, DJ systems, music systems, public address systems etc. allegedly used during weddings, receptions, parties and other functions arranged in the area of P.S. Rajouri Garden. In its order dt 27.09.2018, Hon'ble NGT constituted a committee of exclusive DCP and SDM, to monitor noise pollution in Delhi and directed it to launch an exclusive website, helpline, develop a complete Public Redressal mechanism and to conduct regular meetings with stakeholders departments. In its later orders, Hon'ble NGT has directed this Committee to identify hotspots, procure sound level meters, develop an app for public redressal, awareness programs, noise limiters, new compensation regime etc. In pursuance to the above, a Monitoring Committee headed by Hon'ble Justice Sh. S.P. Garg, former Judge of Delhi High Court was also constituted, to monitor the performance of this Committee, which has submitted its report on 30.04.2022.

**2. Actionable Points**

The present status and actionable points were reiterated in the committee. During the proceedings of earlier meetings, the following tasks

were marked to different stakeholder departments to accomplish and execute:

- i. **Delhi Pollution Control Committee (DPCC)**
  - a. Development of Legal Framework
    - Empowerment of Local bodies,
    - Delegation of Authorities to SHOs, and
    - Notification for permission of loudspeakers etc.
  - b. Construction Sites
    - Preparation of Guidelines
    - Field inspection & subsequent actions
  - c. Data Analysis and Identification of Hotspots
    - Supply the data to local bodies & Traffic Police
    - Suo-Moto Actions by DPCC
  - d. Action under New Compensation Regime
- ii. **Local Bodies**
  - a. To conduct inspections,
  - b. To report violations to Designated Authorities,
  - c. To take actions on the report of DPCC around 31 hotspots,
  - d. To conduct meetings with office bearer of religious institution and pursue them to install sound limiters,
  - e. Awareness through educational institutions under their control,
  - f. Social media, jingle music, electronic boards at prominent places.
- iii. **Traffic Police & Transport Department**
  - a. Action against pressure horns, violation of silence zones, modified silencers, playing of music in vehicles,
  - b. Observe no honking days,
  - c. Awareness through social media.
- iv. **Dept. of Environment-Awareness**
  - a. Through Eco clubs
  - b. Through print media
  - c. FM channels
  - d. Publication of pamphlets
- v. **Dept. of Education**
  - a. To conduct debate, essay, posters, drama competitions in schools and
  - b. To sensitize children about hazards of noise pollution.

**vi. Delhi State legal Service Authority**

- a. To involve the volunteers for door-to-door campaigns,
- b. To conduct *Nukkad Nataks*,
- c. To sensitize RWAs, MWAs etc.

**vii. Sales Tax Department**

- a. To take action against illegal sale of pressure horns, modified silencers

**viii. Public Works Department**

- a. To conduct regular inspections at construction sites and report actions.

**3. Meeting of Chief Secretary, GNCT, Delhi**

*Dr. Mukesh Kumar, SDM Hauzkhass apprised the Committee about the discussions and decisions taken in the meeting held on 18.08.2022 under the chairmanship of Chief Secretary, Delhi. The meeting was held in pursuance to the directions of Hon'ble NGT that Chief Secretary, GNCT, Delhi to supervise & co-ordinate the matter for effective implementation of the points raised in the status report filed by Hon'ble Justice Sh. S.P. Garg.*

Regarding the directions given in the meeting dt 22nd March, 2022 that

*'SDM/Hauz Khas the Nodal Officer of noise pollution for GNCT, Delhi is directed to prepare and put up a proposal for control of illegal sale of modified silencers & pressure horns in markets, in coordination with trade & taxes departments and prepare a draft for circulation to all areas SDMs in Delhi for effective implementation on ground.'*

He assured the committee that he is working on the proposal and will pursue the sales tax department, to nominate a Nodal Officer, to participate in the future meetings of this committee and prepare a draft accordingly.

He further informed that the PI of the dedicated web portal has already been forwarded to DPCC, for release of funds to NIC, so that the performance and functioning of web portal will not hamper.

**4. Actions by Delhi Police**

**a) Complaints received on Dedicated Helpline, Web Portal & ERSS-112**

The complaints received on various platforms i.e., *dedicated web portal, exclusive helpline and ERSS-112* were placed before the Committee.

(42)

This year up to 28.08.2022, total **20,251** complaints/calls were received on web portal, helpline and ERSS-112. On analysis, it was found that **917** complaints were received on web portal, **1094** on exclusive Helpline and **18,240** on ERSS-112.

Regarding action taken, it was found that total **190** legal actions initiated, **4,008** complaints reported untraced, **13,419** complaints filed and **2,534** complaints were found repeated. The percentage of legal actions initiated was found to be only **1.40%** excluding untraced and repeated calls.

After analysis of the above figures, it was observed that:

- a. The overall action percentage of this year has shown a downtrend from the previous year. This year it was found to be only **1.40%**.
- b. During this year, the action percentage was found to be **0.72%** on the web, **1.15%** on the helpline and **1.45%** on ERSS-112.
- c. On head wise action analysis, **86%** actions were found to be related with loud speakers from 10PM to 6AM.

Nodal Officers of the districts are requested to direct the field staff to increase the prosecutions and legal actions as the figure of action taken is very low in comparison to the comparative figures of the previous years.

(Action by District DCsP)

**b) Complaints received on Green Delhi and SAMEER App**

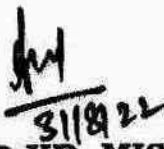
On analysis of data of Green Delhi App, it was found that **723** grievances were forwarded to Delhi Police, till 28.08.2022, in which **03** grievances are pending with the Delhi Police. (01 each with West, Outer & South West).

On SAMEER App, **298** complaints forwarded to Delhi Police till 28.08.2022, in which **06** grievances are pending with Delhi Police (02 with Central & South-West and 01 each with South & Rohini districts)

All the Nodal Officers of the districts are requested to dispose-off the pendency at the earliest.

(Action by: Addl. DCsP/Districts)

The meeting ended with a vote of thanks.

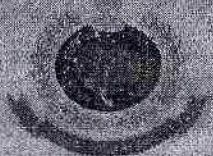
  
**(ANAND KR. MISHRA),**  
Nodal Officer, Noise Pollution,  
cum DCP/OPS., Delhi

No. 443-478 NGT Sectt. /PHQ, dated Delhi the 31 / 08 /2022

Copy forwarded to:

1. DCsP All Districts & Traffic,
2. DCP, Legal Division,
3. Member Secretary, CPOB & DPCC,
4. Secretary, DSLSA
5. SDM, Hauzkhas
6. SO to Chief Secretary, GNCT,
7. PA to Pr. Secretary, Dept of Environment, GNCTD,
8. PA to Commissioner, MCD
9. PA to Commissioner, Transport Department, GNCT, Delhi,
10. PA to Secretary, New Delhi Municipal Council,
11. PA to CEO, Delhi Cantonment Board,
12. PA to Commissioner, Sales Tax Dept. *with a request to nominate a Nodal officer, who shall prepare a proposal for controlling sale of modified silencers & pressure horns in coordination with SDM Hauzkhas and attend the meetings of this Committee.*
13. PA to Director Education, GNCT Delhi
14. PA to the Engineer in Chief, PWD
15. SOs to Spl. CsP/Traffic Division, L&O Division I & II,
16. SO to Addl. CP/Eastern Range,
17. SO to OSD to CP/Delhi,





**NOISE POLLUTION CONTROL COMMITTEE**  
**MINUTES OF THE MEETING**

(28<sup>th</sup> September, 2022)

In compliance with the directions of Hon'ble NGT in OA No.519/2016, read with 196-197-496/2018, in the matter of Hardeep Singh & Ors. vs SDMC & Ors. and Akhand Bharat Morcha vs Union of India & Ors., the Joint Meeting of the Noise Pollution Control Committee was held at 1600 hrs. on 28.09.2022, at Conference Hall, Office of Divisional Commissioner, 5- Sham Nath Marg, Delhi.

The meeting was chaired by Ms. Ira Singhal, IAS, DC(HQ)-V, Revenue Dept, GNCTD and following officers had also attended the meeting:

1. Sh. Anand Kr. Mishra, DCP, Operations,
2. Sh. Vinod Kr. Yadav, Dy. Commissioner, Transport,
3. Sh. Amit Anand, IFS, Dept. of Forest & WL,
4. Smt. Mithlesh Gupta, SDM-II, HQ,
5. Sh. Rajeev Ranjan, Dy. Secy., Dept. of Env. & Forest, GNCTD,
6. Sh. Rajendra Prashad Yadav, ACP, Traffic HQ,
7. Dr. Nandita Moitra, Sr. Scientist, DPCC,
8. Dr. Anwar Salim, State Coordinator, Education Department,
9. Sh. Dinesh Jindal, Law Officer, DPCC,
10. Sh. Trilok Chand, EE, DPCC,
11. Sh. S.C. Yadav, SE, Central Zone, MCD,
12. Smt. Asha Verma, Dy Director, NDMC,
13. Sh. Vijay Kumar, Revenue Supt., DCB,
14. Sh. Gurudutt Ranga, GSTO, Dept. of Trade & Taxes,
15. Sh. Vaibhav Dara, Asst. fellow, Dept. of Env. & Forest, GNCTD,
16. Sh. Ashu Bidhuri, PLV, DSLSA,
17. Sh. Sona Lal, PLV, DSLSA

The Meeting began with the welcome note and formal introduction highlighting the purpose & objectives of convening this meeting and mentioning of the directions given by the Chief secretary, GNCT, Delhi in the meeting held on 18.08.2022.

In compliance to the above directions, Ms. Ira Singhal, IAS, DC(HQ)-V, Revenue Dept, GNCTD is nominated as Nodal officer & representative of GNCT, Delhi and Smt. Mithlesh Gupta, SDM(HQ)-II is assisting her as SDM NGT matters.

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In order to delegate the powers to all SHOs in Delhi, DPCC has sent a request to MoEF&CC, GOI on 30.03.2022, followed by a reminder on 07.07.2022.

On 23.09.2022, a separate request was also forwarded for amending Notification No. S.O.394 (E) dated 16.04.1987 and insertion of all Tehsildars (Revenue Dept.) & Inspectors (Delhi Police) as the designated authorities under Section 19 of the Environment (Protection) Act, 1986, for the violation of the Noise Rules, 2000. The above proposal is presently pending with CPCB for comments, since 10.08.2022. In this reference, CPCB has also requested for an early response.

Apart from above, DPCC has also sent a proposal to MOEF, GNCT on 23.09.2022, for empowerment of officials of ACs rank of ULBs.

Further, in order to increase the actions, DPCC vide its letter dt.21.09.2022 requested Commissioner of Police & Divisional Commissioner, Delhi, to direct & sensitize the subordinate staff to enforce noise norms and intensify the actions. It is further requested to submit a monthly action taken report to DPCC, regarding inspections conducted, compensation imposed and compensation collected.

viii) The Environment Department/DPCC in collaboration with Delhi Judicial Academy and Delhi State Legal Services Authority has also organized a conference on awareness about the ill effects of noise on human health on 10.09.2022.

ix) *Measures like noise tracking which are so adopted by the European countries.*

As desired by the Chief Secretary, a study of European countries is under process and a report will be submitted shortly.

x) *The draft guidelines for construction site to control the Noise Pollution*

The draft of interim guidelines for construction sites are ready and will be sent to CPCB for comments. After approval, it will be finalized.

After perusal of the above report of DPCC, it was directed that the guidelines should be same for conforming and non-conforming areas and SDM/HQ was directed to initiate a proposal for implementation of new compensation regime by the designated authorities of Revenue dept & Delhi police.

(Action: Nodal officer, DPCC & SDM/HQ)

## **2. Submission of Reports by ULBs**

Sh. S.C. Yadav, SE, MCD, Smt. Asha Verma, Dy. Director, NDMC and Sh. Vijay Kumar, Revenue Supt., DCB have presented their reports regarding

implementation of noise rules, inspections and mass awareness conducted by ULBs during this period.

After an analysis & scrutiny of reports submitted on the prescribed proformas, the following observations and directions were given:

- i. In the report, inspections were conducted but violations were not reported. All the Nodal Officers were directed to sensitize field staff to report the violations to the Designated Authorities of their area i.e. SDMs concerned, till the powers of initiating legal action is delegated to ULBs.
- ii. The Nodal Officers have shown ignorance about the actions to be initiated against religious institutions, such as installing sound limiters in PA systems and loud speakers. They were directed to conduct meetings at the level of DCs/ACs of ULBs and persuade the religious institutions to install sound limiters.
- iii. As per the report of Delhi Cantt. Board, they are creating awareness through video clips, competitions in educational institutions and clips played on electronic screens, installed at prominent places like markets, hospitals, which receive the maximum footfall. All the Nodal Officers were directed to follow the initiatives taken by DCB and increase mass awareness among people.
- iv. In pursuance to the directions of CS, Delhi, all the Nodal Officers are directed to launch drives/campaigns against encroachments on footpaths and illegal parking, resulting in increased honking in the area, causing noise pollution.
- v. Noise awareness messages may be uploaded on the official social media accounts of ULBs, so that more awareness may be created.
- vi. NDMC has submitted a nil report and have not procured any SLMs till now. All the Nodal Officers are directed to re-assess the need of SLMs and NDMC should specifically expedite the proposal for procuring SLMs at the earliest.
- vii. SDM/HQ is directed to coordinate with ULBs and move a proposal to convene a meeting of the heads of ULBs with either the Chief Secretary, Delhi or the Divisional Commissioner, to facilitate the coordination with ULBs.
- viii. SDM/HQRS should initiate a proposal for procurement of SLMs for SDMs, Delhi as they are also Designated Authorities under Noise Rules.

(Action by: Nodal officers of ULBs & SDM/HQ)

### 3. Traffic Police & Transport Department

Sh. Vinod Yadav, Dy. Commissioner, Transport Dept. apprised that in compliance to the directions of this committee, the Transport Dept. has stepped up actions against pressure horns. In the period w.e.f. 01.05.2022 to 15.09.2022, 160 actions were initiated against pressure horns in Delhi.

Sh. Rajendra Prashad Yadav, ACP, Traffic HQ informed the Committee that in 2022, total 2,288 challans were issued against the use of pressure horns, 129 against honking in silent zones, 5,872 against modified exhausts/ silencers and 146 against playing loud/high pitch music in vehicles by Delhi Traffic police.

Regarding the directions of the Chief Secretary Delhi conveyed in the meeting dt. 18.08.2022, Sh. Vinod Yadav, DC submitted that:

- The Transport Department has prepared a media campaign for the awareness of "No Honking Day" for 2nd day of every week. The file for the media campaign has been sent to DIP. The Enforcement Branch of the Transport department has also been sensitized for necessary action during this event.
- The Transport department has directed their operation & taxi unit to convey the directions to the community Taxis like Ola & Uber, to include the points like unnecessary honking, using pressure horns in their feedback forms.
- The Enforcement Branch of Transport department has been directed to keep more emphasis for challaning the vehicles, which are honking unnecessary and for smooth flow of traffic. The enforcement teams are already deployed for maintaining bus lane discipline.
- The Enforcement Branch of Transport department has been directed to give more emphasis for challaning of pressure horns and modified exhausts.

Regarding coordination with Delhi Police, a DO letter was written to the Commissioner of Police Delhi on 23.09.2022 by Pr. Secretary cum Commissioner Transport. In order to make this 'No Honking Day' successful, the Transport Department will issue public notices and deploy its enforcement teams. For achieving tangible results, contribution and co-operations of Delhi Police is crucial. Probably, the second day i.e., Tuesday may be declared as no honking day.

In this connection, after analysis of reports of Transport Dept. and Traffic Police, it was directed that:

- (48)
- All the stakeholder departments such as DPCC, Education Dept., ULBs, Dept of Environment should coordinate and cooperate in making this proposal successful.
  - Proper awareness may be created for the campaign and all other departments should include the campaign in their awareness initiatives.
  - In addition to no honking day, drives/ campaigns launched by Traffic Police in February may be repeated in coordination with the Transport Department.

(Action by: Nodal officers of Transport Dept. & Traffic Police)

#### 4. Awareness efforts by Dept. of Environment & Forests

Sh. Rajeev Ranjan, Dy. Secretary, Dept. of Env. & Forests informed the Committee about the efforts done to create awareness. He apprised the Committee, that:

- a) The services of Eco Clubs are being utilised for sensitizing the students. Further, an annual calendar is also prepared for Eco Clubs, which is being regularly monitored and followed for awareness in educational institutions. Activities like Nukkad-Nataks, poster making, slogan writing competitions are organised.
- b) In print media, a dedicated message has been published in 16 newspapers on 12.08.2022.
- c) The broadcast of jingle music through FM Channels is in process and in this reference, a jingle has been received from DIP.
- d) About one lacs pamphlets were distributed on 10<sup>th</sup> Jan, 2022 and the same exercise will be repeated very soon.
- e) Regarding the directions of CS, Delhi to take assistance of brand ambassadors & to develop an online module, where the participants can become awareness warriors, a proposal has been sent to the IT Department. Regarding the utilization of services of ENT doctors of reputed hospitals, a request has also been sent to Medical Supt. Of Delhi Health Dept.

After perusal of above efforts of Dept. of Env. & Forest, it was envisaged that:

- Awareness should be a co-ordinated & concerted effort of all stakeholder departments. Dept of Environment should take the initiative of involving other departments in this pursuit.
- Dept. of Environment should contact institutions where electronic screens are installed. They may be railway stations, inter-state bus

(49)

terminals, hospitals etc., where posters of noise pollution be displayed and jingle music be played in playback.

(Action by: Nodal Officer, Dept of Environment)

#### **5. Awareness by Educational Department**

Dr. Anwar Salim, State Coordinator, Education Department, informed the Committee that PDF material related to different types of pollution, reducing carbon footprint, cleanliness drives, tree plantation, global warming, healthy food and hygiene are already uploaded on the Department of Environment website, so that all schools should comply with them. He further asserted that they are regularly coordinating with the Environment Department, for effective implementation of various programs to generate awareness among the students, teachers, and SMC members about the pollution. Regular essay & slogan writing, poster & painting competitions, role play & *nukkad-nataks* are being organized in educational institutions and regular reports are being sought from them.

After perusal of the above report, it was directed that the Education Dept. should share the winners of poster competition with other departments like ULBs, Revenue. It should be used in spreading awareness and organizing a noise week, in which the participation of all departments should be ensured.

(Action by: Education Dept. & Dept. of Environment)

#### **6. Awareness by DSLSA**

The representatives of DSLSA apprised the Committee that they are conducting door to door campaigns, *nukkad-nataks* and meetings with RWAs & IWAs.

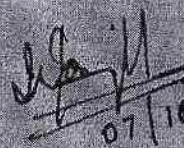
They were directed to maintain a record of awareness activities organised by them and provide date wise details along with photographs of initiatives taken by them.

#### **7. Actions by Dept. of Trade & Taxes**

Sh. Gurudutt Ranga, GSIO, Dept. of Trade & Taxes, informed the Committee that in compliance to the directions of SDM, Hauzkhas, Trade & Taxes department is regularly conducting sensitization meetings with the representatives of MWAs and persuading them to abide by the noise regulations. He further informed the Committee that the department hasn't got any powers to penalize the violators.

In this reference, he was directed to intensify the awareness initiatives and the details of meetings conducted may be furnished to this committee in the next meeting.

The meeting ended with a vote of thanks.

  
07/10/22

(IRA SINGHAL, IAS)  
Nodal Officer, Noise Pollution  
cum Dy. Commissioner, HQ, GNCT, DELHI

  
07/10/22

(ANAND KR. MISHRA),  
Nodal Officer, Noise Pollution,  
cum DCP/OPS., Delhi

No. 51-546 NGT Sectt. /PHQ, dated Delhi the 07/10/2022

Copy forwarded to:

1. DCsP All Districts & Traffic,
2. DCP, Legal Division,
3. Member Secretary, CLCB & DPCC,
4. Secretary, DSLSA
5. SDM, HQ-2, Dept. of Revenue, Delhi
6. SO to Chief Secretary, GNCT,
7. PA to Divisional Commissioner, Dept of Revenue, Delhi
8. PA to Pr. Secretary, Dept of Environment, GNCTD,
9. PA to Commissioner, MCD
10. PA to Commissioner, Transport Department, GNCT, Delhi,
11. PA to Secretary, New Delhi Municipal Council,
12. PA to CEO, Delhi Cantonment Board,
13. PA to Commissioner, Sales Tax Dept.
14. PA to Director Education, GNCT Delhi
15. PA to the Engineer in Chief, PWD
16. SOs to Spl. Csp/Traffic Division, L&O Division I & II,
17. SO to Addl. CP/Eastern Range
18. SO to OSD to CP/Delhi



Annexure-VI (Copy)

By Speed Post

DELHI POLLUTION CONTROL COMMITTEE  
4TH FLOOR, ISBT BUILDING, KASHMERE GATE, DELHI-6  
Website: <http://dpcc.delhigovt.nic.in>

F.No. DPCC/(10)(10)(57)/Leg-16/Part File/ 699

Dated: 30/3/22

To

The Secretary,  
Ministry of Environment, Forest and Climate Change  
Govt. of India, Indira Paryavaran Bhawan,  
Jorbagh, Lodhi Colony,  
New Delhi- 110003

Subject: Delegation of power to SHOs (Station House officers of Delhi Police) under Noise Pollution Rules-2000, for effective implementation of noise norms under Section 19 of the Environment (Protection) Act, 1986.

Sir,

The Hon'ble National Green Tribunal constituted a monitoring committee under the Chairmanship of Hon'ble Justice (R) S.P. Garg, Former Judge of Delhi High Court for monitoring of compliance of Noise Rules vide order dated 11.08.2020 passed in Original Application No. 519/2016 titled as, "Hardeep Singh & Ors Vs SDMC and Others and other alike matters.

The above mentioned committee, in its meeting held on 28.12.2021 (minutes of the meeting are enclosed as Annexure-1), decided:-

**"Delegation of authority to SHOs:- matter of delegation of prosecuting powers to all SHCs should be explored and perused at adequate level and powers of designated Authorities may be delegated for effective implementation of noise norms".**

On the issue of taking cognizance of any offence under the EP Act 1986, the relevant provision is Section-19 of the Act. As per Section 19 of the EP Act 1986, the cognizance of offence committed under EP Act, can be taken by the Court on the complaint made either by the Central Government or by any authority or officer authorized in this behalf, by the Central Government.

Contd..

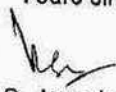
The Central Government vide Notification dated 16.04.1987 as amended from time to time, has authorized the Chairman & Member Secretary, DPCC and SDMs of Delhi Govt. under Section 19 of the EP Act, 1986( Annexure-2).

In light of the aforesaid, it is requested that MoEFCC, Govt of India may suitably amend the Notification No. S.O. 394(E) dated 16.4.1987 and all SHOs of Delhi Police may be inserted in the above mentioned Notification as an authorized officer under Section 19 of the EPA, 1986, for the violation of the Noise Rules, 2000, at the earliest.

Thanking you,

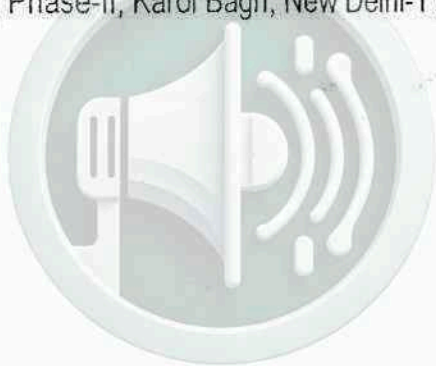
Encl: as above

Yours sincerely,

  
(K.S. Jayachandran)  
Member Secretary

Copy to:

1. Sh. S.P. Garg, Justice (Retd.), Monitoring Committee, Office of the Chief Advisor (WB/C), Varunalaya, Phase-II, Karol Bagh, New Delhi-110005.



**STN**  
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By Speed Post



DELHI POLLUTION CONTROL COMMITTEE  
4TH FLOOR, ISBT BUILDING, KASHMERE GATE,  
DELHI-6

Website: <http://dpcc.delhigovt.nic.in>

F.No. DPCC/(10)(10)(57)/Leg-16/Part File/741

Dated: 7/7/2022

To,  
The Additional Secretary,  
Ministry of Environment, Forest and Climate Change  
Indira Paryavaran Bhawan,  
Jor bagh, Lodhi Colony, New Delhi- 110003

**Subject: Delegation of power to SHOs (Station House officers of Delhi Police) under Noise Pollution Rules-2000, for effective implementation of noise norms under Section 19 of the Environment (Protection) Act, 1986.**

Sir,

This is in continuation to our letter dated 30.03.2022 on the subject cited above (copy enclosed), wherein it was requested that the powers under Sec 19 of Environment (Protection) Act, 1986 may immediately be delegated to all SHOs of Delhi Police for taking action for violation of Noise Rules, 2000.

The above recommendation was based on the directions of the Committee constituted by the Hon'ble National Green Tribunal under the Chairmanship of Hon'ble Justice (R) S.P. Garg, Former Judge of Delhi High Court in Original Application No. 519/2016 and other alike matters.

In light of the aforesaid, it is once again requested that MoEFCC, Govt of India may suitably amend the notification No. S.O. 394(E) dated 16.4.1987 and all SHOs of Delhi Police may be inserted in the above mentioned notification as an authorized officer under Section 19 of the EPA, 1986, for the violation of the Noise Rules, 2000 at the earliest.

Thanking you,

Encl: as above

Yours sincerely,

  
(K.S. Jayachandran)  
Member Secretary

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**Q-16017/38/2022-CPA**  
**GOVERNMENT OF INDIA**  
**MINISTRY OF ENVIRONMENT, FOREST & CLIMATE CHANGE**  
**(CP DIVISION)**

\*\*\*

2nd Floor, Prithvi Wing,  
Indira Paryavaran Bhawan,  
Jor Bagh, New Delhi-110003  
Date: 10<sup>th</sup> August, 2022

To

Member Secretary,  
Central Pollution Control Board,  
Parivesh Bhawan, East Arjun Nagar,  
Shahdara, New Delhi- 110032

**Subject: Representation from DPCC on delegation of power to SHOs (Station House officers of Delhi Police) under Noise Pollution Rules-2000, for effective implementation of noise norms under Section 19 of the Environment (Protection) Act, 1986- reg.**

Sir,

Please find enclosed a copy of a letter numbered DPCC/(10)(10)(57)/Leg-16/Part File/699 dated 30.03.2022 received from Shri K.S. Jayachandran, MS DPCC on the subject mentioned above.

2. It has been requested that this Ministry may suitably amend the Notification No. S.O. 394(E) dated 16.4.1987 and all SHOs of Delhi Police may be inserted in the above mentioned Notification as an authorized officer under Section 19 of the EPA, 1986, for the violation of the Noise Rules, 2000.

3. In this regard, it is requested to examine the matter and furnish comments/views to this Division for further necessary action.

4. This issues with the approval of Competent Authority.

**Encl:** As above. — sent via email.



Yours faithfully

*R. N. Pankaj*  
(R. N. Pankaj)  
Scientist 'D'

Tel: 011-20819379

**Copy for information to:**

Member Secretary, Delhi Pollution Control Committee (DPCC), 4<sup>th</sup> and 5<sup>th</sup>  
Floor, ISBT Building, Kashmere Gate, New Delhi- 110006



DELHI POLLUTION CONTROL COMMITTEE  
4TH FLOOR, ISBT BUILDING, KASHMERE GATE, DELHI-6  
Website: <http://dpcc.delhigovt.nic.in>

Annexure-VII

By Speed Post

55

F.No. DPCC/(10)(10)(57)/Leg-16/Par: File/ 778

Dated: 21/9/2022

To,

The Secretary,  
Ministry of Environment, Forest and Climate Change  
Indira Paryavaran Bhawan,  
Jor bagh, Lodhi Colony, New Delhi- 110003

**Subject: Delegation of power to Tehsildars (Revenue Department) & Inspectors of Delhi Police to take action for violation of the Noise Pollution Rules-2000, for effective implementation of noise norms under Section 19 of the Environment (Protection) Act, 1986.**

Sir,

In compliance of the order dated 14.07.2022, passed by the Hon'ble Green Tribunal in OA No. 519/2016 titled as, "Hardeep Singh & Ors Vs SDMC and Others and other alike matters, the worthy Chief Secretary, Delhi took a meeting on 18.08.2022 (copy of minutes enclosed as Annexure-1).

In the above mentioned meeting it was decided:-

*"In addition to Delegation of Power SHOs, (Station House officers of Delhi Police), Tehsildars (Revenue Department) & Inspectors of Delhi Police may also be empowered to take action for violation of the Noise Pollution Rules-2000".*

On the issue of taking cognizance of any offence under the EP Act, 1986, the relevant provisions is Section-19 of the Act. As per Section 19 of the EP Act, 1986 the cognizance of offence committed under EPA can be taken by the court on the complaint made either by the Central Government or by any authority or officer authorized in this behalf by the Central Government.

The Central Government vide Notification dated 16.04.1987 as amended from time to time has authorized the Chairman & Member Secretary, DPCC and SDMs of Delhi under Section 19 of the EP Act, 1986 (Annexure-2).

In light of the aforesaid, it is requested that MoEFCC, Govt of India may suitably amend the notification No. S.O. 394(E) dated 16.4.1987 and all Tehsildars (Revenue Department) & Inspectors of Delhi Police may be inserted in the above mentioned notification in addition to SHO's as an authorized officer under Section 19 of the EPA, 1986, for the violation of the Noise Rules, 2000 at the earliest.

Thanking you,

Encl: as above

Yours sincerely,

(K.S. Jayachandran)  
Member Secretary

Annexure - VIII

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By email / Speed Post



DELHI POLLUTION CONTROL COMMITTEE  
4TH FLOOR, ISBT BUILDING, KASHMERE GATE,  
DELHI-6

Website: <http://dpcc.delhigovt.nic.in>

F.No. DPCC/(10)(10)(57)/Leg-16/Part File/ 779

Dated: 21/9/2022

To,

1. Commissioner, Delhi Police.

Jai Singh Road, near Bangla Sahib Gurdwara, New Delhi-1.

2. Divisional Commissioner,

5 Sham Nath Marg, Delhi-110054.

**Subject:-** Complaine of the direction dated 25.06.2021 issued by DPCC for implementation of Compensation Regime for violation of Noise Rules, 2000

Sir,

In compliance of the order dated 14.07.2022, passed by the Hon'ble Green Tribunal in OA No. 519/2016 titled as, "Hardeep Singh & Ors Vs SDMC and Others and other alike matters, the worthy Chief Secretary, Delhi took a meeting on 18.08.2022 (copy enclosed as Annexure-I).

All Deputy Commissioners (Revenue), All Sub Divisional Magistrates, Asstt. Commissioners of Police control room, All Sub Divisional Police Officers including Railways & Airport, Chairman and Member Secretary, DPCC and Assistant Commissioners of Police (Traffic) are notified as "authority" under Rule (2) of the Noise Rules-2000, by the Govt. of NCT of Delhi vide notification no. F:23(1071)/Env./2001/676 dated 10.12.2001 and F:12 (1)/N.P./ Env./2005/33 dated 05.04.2008.

The DPCC in compliance of the Hon'ble Green Tribunal order dated 11.08.2020 in OA No. 519/2016 in order to ensure compliance of the existing rules and prevent further violation of noise levels with respect to prescribed standards/limit, directed the designated Authorities in NCT of Delhi to implement Scale of compensation for Violation of the Noise Pollution (Regulation and Control) Rules, 2000. (Copy enclosed as Annexure-II). The compensation amount so received was

required to be deposited in DPCC account no. 10166747672, IFSC Code SBIN0005715 State Bank of India, ISBT. Kashmere Gate, Delhi. Monthly ATR of inspections conducted, compensation imposed and compensation collected shall be submitted by the authorized officers to DPCC.

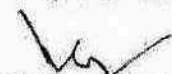
In the Chief Secretary's review meeting on 18.08.2022, it was decided that DPCC shall compile the Monthly ATRs received from Authorized officers regarding inspections conducted, compensation imposed & compensation collected. And also Authorized officers need to increase the enforcement.

Action taken report for last one year be submitted to Delhi Pollution Control Committee, within ten days, as ATR is required to be filed in Hon'ble National Green Tribunal.

Thanking you,

Encl: as above

Yours sincerely,

  
(K.S. Jayachandran)  
Member Secretary



**STN**  
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he Noise Pollution Hotspots based on Real Time Ambient Noise Data of Year 2021  
(Jan. to Dec)

| S.No. | Locations of Noise Pollution Hotspots |
|-------|---------------------------------------|
| 1.    | Alipur(S)                             |
| 2.    | Ashok Vihar(R)                        |
| 3.    | Dr Karni Singh(C)                     |
| 4.    | IMD(R)                                |
| 5.    | Jahangirpuri(R)                       |
| 6.    | JLN Stadium(C)                        |
| 7.    | Karol Bagh(C)                         |
| 8.    | Kashmere Gate(C)                      |
| 9.    | Mundka(R)                             |
| 10.   | Najafgarh(S)                          |
| 11.   | National Stadium(C)                   |
| 12.   | Nehru Nagar(R)                        |
| 13.   | Pooth Khurd Bawana (S)                |
| 14.   | Rohini(S)                             |
| 15.   | Sonia Vihar(R)                        |
| 16.   | Sri Aurobindo Marg(S)                 |
| 17.   | Vivek Vihar(R)                        |
| 18.   | Wazirpur(I)                           |
| 19.   | Anand Vihar (C)                       |
| 20.   | Civil Lines (C)                       |
| 21.   | Mandir Marg (S)                       |
| 22.   | Punjabi Bagh (R)                      |
| 23.   | R.K.Puram (S)                         |